From:	Des Hobson
To:	Peter Morgan
Cc:	Scanning; SBC Development Control
Subject:	RE: S/RES/24/0947. Reserved matters application (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure from S/OUT/13/1555. | Parcels R6 And R7 Land North Of A420 Swindon
Date:	29 November 2024 17:21:43
Attachments:	image001.png image002.png image003.png image004.png

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Hi Peter

I understand that there is internal pressure to determine this application by the end of this month, so I propose the following:

Although the Landscape, Ecology And Arboricultural Management Plan (LEAMP) (FPCR, November 2024) report is still not good enough, it is enough for Reserved Matters, because Condition 11 of S/OUT/13/1555 will need to be discharged before development can start on this parcel. Condition 11 says *"No development on each sub-phase shall commence until the LEAMP for that sub-phase has been approved in writing by the Local Planning Authority."* The LEAMP will need to be improved as set out below and previously before I will be able to recommend discharge of Condition 11 of S/OUT/13/1555 in due course.

The LEAMP lacks specific recommendations in places. There are also no proposals for ecological monitoring even though the FLEAMP (Condition 10 of S/OUT/13/1555 says *"A detailed 30-year biodiversity management plan*
(LEAMP), based on the detailed framework management principles set out above, will be produced
to support this as part of the Reserved Matters Application necessary for each phase, including details of the roles, responsibilities and management mechanism to be put in place." (para 6.3 of Framework Landscape, Ecology And
Arboricultural Management Plan (FLEAMP), FPCR, November 2023.) The FLEAMP is under S/COND/22/0316 (Discharge of condition 10 (Framework, Landscape, Ecology & Arboricultural Management Plan) from previous permission S/OUT/13/1555. Land North Of A420 Eastern Villages Swindon).

The Biodiversity Metric has also not been provided even though the FLEAMP commits to providing it:
"The Metric should however be regarded as an iterative document, being
updated as each Phase/Reserved Matters comes forward, and in the event there are any changes to the phasing of the development." (6.8)

Natural England licence number 2024-00670-EPS-DLL is included at the back of the LEAMP report, covering the area within the red line boundary. Therefore, impacts on great crested newts have been addressed.

There are no elevations drawings showing where bird and bat boxes will be installed. This information needs to be provided. It is in the applicant's interest to provide this, because if it is forgotten to install them, it may be necessary to take enforcement action, as at Abbey Farm, where retro-fitting was considerably more difficult and expensive for the developer. This will

need to be picked up in the discharge of Condition 11.

Boundary drawings need to be amended to show the locations of hedgehog highways in garden fences, so site-wide permeability for hedgehogs is provided. Although hedgehogs are not mentioned in the FLEAMP, which is an oversight, Vistry commits to providing hedgehog highways in the 'Homes for Nature' document (October 2024), which it has signed up to:
"Hedgehog Highways are created by making or leaving small gaps measuring 130mm x 130mm in the base of walls and fences to allow hedgehogs to pass between neighbouring spaces. Gaps should be towards the back of the garden where possible, where planting and shrubs often provide shelter. Gaps in multiple boundaries are required which create a safe route through a development from garden to garden and into and out of open spaces, hedgerows and adjoining land, avoiding egress onto busy roads."
If boundaries can't be revisited after RM has been determined, then the hedgehog highways need to be identified now, prior to determination.

The LEAMP should also pick up the other recommendations made in the 'Homes for Nature' report.

Landscape, Ecology And Arboricultural Management Plan (LEAMP) (FPCR, November 2024)
This report is not good. In places it lacks specific recommendations. There is no ecological monitoring. Information in the FLEAMP which commits to it being provided by the LEAMP has not been included. I have highlighted some elements above: not an exhaustive list.

The report settings prevent comparison by Acrobat against the previous version. By preventing efficient working, this just slows down review and determination. Please change your settings. Please provide revised versions of the LEAMP in two forms to aid faster review: one copy showing track changes for internal review and another copy with track changes accepted to be uploaded on the planning portal.

2.19 Locations of bird nest boxes needs to be shown on drawings.

Landscape, Ecological & Arboricultural Management Plan (IDP, August 2024, Rev B, 10.10.24)
This document has not been revised so my previous comments below remain outstanding. They will need to be addressed before Condition 11 of S/OUT/13/1555 can be discharged.

With kind regards

Des

Des Hobson CEnv MCIEEM
Principal Ecologist

PLACEmaking Team
Swindon Borough Council

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From: Des Hobson
Sent: 04 November 2024 10:36
To: Barry James <BJames4@swindon.gov.uk>
Cc: Scanning <scanning@swindon.gov.uk>; sbcdc@swindon.gov.uk
Subject: RE: S/RES/24/0947. Reserved matters application (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure from S/OUT/13/1555. | Parcels R6 And R7 Land North Of A420 Swindon

Hi Barry

The information submitted is not acceptable in its current format. If an extension of time cannot be agreed, the application should be refused.

I have reviewed the revised documents below, which have been submitted since the last Ecology consultation response. I have not reviewed the other new documents due to the fundamental problems with the submission package which need to be addressed first.

Landscape, Ecology And Arboricultural Management Plan (LEAMP) – Ecology Input (FPCR, October 2024)
This stand-alone document does not address the deficiencies in IDP's LEMP highlighted previously. A single combined report needs to be written and provided for review. The construction and site-management team will not be stitching the separate elements together when the applicant has not.

The stand-alone document also does not contain nearly enough detail, as highlighted below. My comments are not exhaustive.

"2.7 The likelihood of GCN using the low suitability habitats onsite is further reduced as part of the
Site is located outside of 250m of the nearest GCN pond." Figure 2 shows that half the site is within 250m, so I am not sure what meaning this statement is trying to convey. GCN roam within 500m of ponds. If provided, the District Level Licence will cover this off.

"2.8 Impacts on GCN and compensation for habitat losses on-site and across the wider area will be
dealt with through offsite enhancements secured by a Natural England District Level Licence.
The licence (2024-00670-EPS-DLL) was issued by Natural England on the 11th June 2024."

I have not seen this licence. It needs to be provided to the LPA if we are to rely on it.

"2.20 Bird boxes will be provided as part of the development proposals and will be proportional to the
number prescribed as part of the FLEAMP."
We need to know the specific details: this is a RM application.

"2.26 The post development habitats and enhancements, as part of the wider development, will provide
new foraging and roosting opportunities for a range of bat species.
2.27 Bat boxes will be provided as part of the development proposals and will be proportional to the
number prescribed as part of the FLEAMP."
We need to know the specific details: this is a RM application.

"2.35 Post development green infrastructure and enhancements, as part of the wider development, will
provide dormice with new foraging and nesting opportunities, should they become established in the local area in the future."
We need to know what elements of the wider development mitigation and enhancement will be provided through this RM application.

"3.1 Details regarding habitat retention, protection, creation and management are provided in the
Landscape, Ecology and Arboricultural Management Plan (LEAMP) prepared by IDP Landscape Ltd (August 2024)."
Previous comments need to be addressed in the IDP report, as highlighted previously.

"3.2 Habitat establishment will be reviewed by a suitably qualified ecologist alongside a landscape
architect to ensure that habitats are maturing in line with the management plan to ensure effective establishment, to ensure they provide the biodiversity value. Corrective action will be taken accordingly."
This is meaningless in effect. Robust monitoring and target condition information based on the UK Habitats Classification needs to be provided.

"4.2 Post development green infrastructure will provide enhancements to a range of species."
This is vacuous.

Landscape, Ecological & Arboricultural Management Plan (IDP, August 2024, Rev B, 10.10.24)
It would be helpful at aiding quick review and determination of the application if two versions of this document were provided for review: one showing track changes made since the last iteration and another with the 'track changes accepted' for publication on the Planning Portal.

Comparing the PDFs (Rev A 6.8.24 vs Rev B), no ecology changes have been made, so the document still remains not acceptable in its current format. The document is almost entirely generic.

1.2. Maintenance schedules need to cover the first 30 years, and then the operational lifetime of the development.

"1.3. Best practise working procedures will be adhered to at all times during the construction works" What does this mean in practice? Currently it is meaningless.

"2.2. The landscape areas will be sympathetically managed to increase the ecological value of the site generally," This is meaningless. It needs to be tied into the site-wide prediction for BNG and show how this parcel will deliver its proportion of BNG, which was committed to at Outline.

"5.2. The proposed development necessitates the removal of 6no. trees and 286 lm of hedgerows as well as areas of improved grassland. The proposed landscape scheme will deliver 103 new trees, 139.5 lm of native mixed hedgerows and 152 lm of pollinator friendly ornamental hedges." Why have these numbers been reduced since Rev A?

With kind regards

Des

Des Hobson CEnv MCIEEM
Principal Ecologist

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From: Des Hobson
Sent: 27 September 2024 10:50
To: sbcdc@swindon.gov.uk; Scanning <scanning@swindon.gov.uk>
Subject: S/RES/24/0947. Reserved matters application (access, appearance, layout, scale and landscaping) for 137 dwellings and associated infrastructure from S/OUT/13/1555. | Parcels R6 And R7 Land North Of A420 Swindon

Hi Ed

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SUMMARY

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The information submitted is not acceptable in its current format.

The Landscape Officers comprehensive response to the scheme (x17no. points raised in their memo letter dated 3.9.24 on the planting scheme) states *"...Not acceptable in its current format -*

subject to changes noted below…". Further to this, an additional comment regarding the LEAMP was that it; *"…was more of a landscape management plan…"*

The statement above stating it is not acceptable is also applicable to ecology for the reasons outlined below.

<u>The LEMP (IDP Ltd, August 2024 | LA5979-LEAMP-01 A)</u>

Under Section 6.0 Management Responsibilities, for completeness, I would like to see reference again to a Suitably Qualified Ecologist (SQE) role as part of any long term management team in order to deliver, review and monitor the site against the LEAMP in respect of ecology and associated landscape planting, and that *"…all landscape maintenance operations, do not conflict with ecology operations" (7.2) as stated in 7.5*

7.5 "…The Contractor will be responsible for retaining the appropriate ecologists to carry out the monitoring of proposed mitigation measures for protected species, including badgers located in the northwest corner of the site…"
However, it is not stated within the LEAMP any mitigation, enhancement or monitoring in respect of Badgers, and to that extent agree with the Landscape Officer that this document is more akin to a LMP than a LEAMP.

Under Section 3.0 ECOLOGICAL & ARBORICULTURAL POTENTIAL AND CONSTRAINTS , this contains hardly any ecological information on potential and/or constraints. This section needs far more detail and reference. Ther is no mention on species such as, but not limited to, birds, bats, reptiles, mammals (especially Badger)in respect of mitigation or habitat enhancement features such as hibernacula, bat and bird boxes. A monitoring regime for these is also therefore also omitted. There is no reference to the ponds ecology and/or mitigation. Enhancement and monitoring.

Kind regards,

Andrew

Andrew King
Consultant Ecologist

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Please note that Des Hobson has not reviewed this application.